AARI REALTY LLC · FLORIDA LICENSED BROKERAGE

Independent Contractor Agreement

Including the Commission Structure Addendum & Exhibit A

Version 1 · Broker of Record: Marlenyi L. Paredes · License BK3530153

Independent Contractor Agreement

Core agreement · Aari Realty LLC

This Independent Contractor Agreement ("Agreement" or "ICA") is made and entered into by and between AARI REALTY LLC ("Broker" or "Company") and the undersigned real estate licensee ("Associate"), effective as of the date signed below.

DEFINITIONS

For purposes of this Agreement, the following terms shall have the meanings set forth below:

- **"Agreement" or "ICA"** means this Independent Contractor Agreement, including all Incorporated Documents.
- **"Associate"** means the real estate licensee who executes this Agreement.
- **"Broker" or "Company"** means AARI Realty LLC, a Florida limited liability company.
- **"Business Day"** means any day other than Saturday, Sunday, or a federal holiday observed by the Company.
- **"Incorporated Documents"** means all documents referenced in Section 18 and incorporated by reference into this Agreement, including the Commission Structure Addendum, Exhibit A – Commission Fee Schedule, Operations & Compliance Manual, and all policies and addenda.
- **"Notice"** means written communication delivered by email, posting in compliance platform, electronic acknowledgment, or text message. Notice is deemed delivered immediately upon sending or posting.
- **"Written" or "Writing"** includes email, electronic communications, digitally executed documents, and physical documents bearing original or electronic signatures.
- **"Immediately"** means within twenty-four (24) hours of discovery unless a shorter timeframe is specified.

1. INDEPENDENT CONTRACTOR RELATIONSHIP

The Associate is engaged as an **independent contractor**, not an employee. The Broker will not withhold taxes, provide employee benefits, or control the Associate's daily work schedule. The Associate is solely responsible for tax filings, business expenses, professional tools, transportation, and maintaining required insurance. The Associate must complete a W-9 form and will receive a 1099-NEC for tax purposes.

Broker retains authority to direct compliance with legal and regulatory obligations under Florida Statute Chapter 475 and FREC rules, without altering the Associate's independent contractor status.

No Authority to Bind. The Associate has no authority to bind the Company, enter contracts, or incur obligations on the Company's behalf without a specific written Power of Attorney executed by the Broker for each transaction.

2. EXCLUSIVE BROKERAGE AFFILIATION

The Associate affirms they are not licensed with or actively affiliated with any other real estate brokerage or conducting brokerage activity outside of AARI REALTY LLC. Limited outside affiliations (such as referral-only licenses in other states) require prior written approval from the Broker. Engaging in unapproved brokerage activity constitutes immediate termination for cause and may result in forfeiture of pending commissions.

3. ASSOCIATE RESPONSIBILITIES

The Associate shall:

- **Licensure.** Maintain an active Florida real estate license at all times and remain in compliance with continuing education and renewal requirements.
- **Compliance with Laws and Rules.** Comply with all applicable Florida Statutes, FREC Rules, MLS Rules, the NAR Code of Ethics, and all Company policies.
- **Incorporated Documents.** The Associate agrees to abide by all documents incorporated by reference, including but not limited to the Commission Structure Addendum, Exhibit A – Commission Fee Schedule, Operations & Compliance Manual, and all other written policies issued by the Company.
- **Deadlines & Technology Protocols.** Follow all compliance deadlines, document submission requirements, and technology protocols as directed by the Company.
- **Cybersecurity & Data Breach Reporting.** Report any suspected or actual data breach within four (4) hours of discovery, or by 9:00 AM EST the following business day if discovered after 5:00 PM EST or on weekends.
- **Data Breach Liability.** If an Associate's negligence, willful misconduct, or violation of Company cybersecurity protocols causes or contributes to a data breach, the Associate shall be liable for resulting damages, provided that Associate liability shall not apply to losses caused by: (i) third-party breaches beyond the Associate's reasonable control; (ii) failures in Company-provided technology infrastructure; (iii) acts or omissions of Company employees, officers, or agents; or (iv) events occurring after the Associate has complied with all applicable data breach reporting requirements.
- **Wire Safety.** Associates must not transmit wire transfer instructions via email or text. All wire instructions must be verbally confirmed by the client directly with the title company. Any violation constitutes an immediate termination event and may result in withheld commissions and disciplinary action.
- **MLS Compliance.** Enter all listings into the MLS within twenty-four (24) hours of public marketing, in compliance with NAR's Clear Cooperation Policy.
- **Social Media & Advertising.** Any advertising, marketing, or social media content that uses the Company's name, branding, or implies affiliation requires prior written Broker approval, except where Associates use pre-cleared Company templates.
- **TCPA Compliance.** Associates must comply with all federal and state laws governing telemarketing, text messaging, and electronic communications, including maintaining documentation of client consent.
- **Auto Insurance.** Insurance and safety requirements, including auto insurance minimums for transporting clients, are defined in the Operations & Compliance Manual.

- **Transaction Coordination.** File organization services are provided through Aari Transactions LLC, an affiliated entity. Associates may elect full TC services for an additional published fee.

4. FAIR HOUSING COMPLIANCE

The Associate must comply with the Company's Fair Housing Policy and Advertising Policy. Discriminatory practices are strictly prohibited. Violations may result in immediate termination and reporting to FREC.

5. CONFIDENTIALITY

Definition of Confidential Information. "Confidential Information" includes all non-public information belonging to the Company or its clients, whether disclosed in written, oral, electronic, or digital form, including client lists, leads, pricing strategies, commission structures, proprietary training materials, business plans, Company records, technology systems, and compliance protocols.

Use Restriction. The Associate shall use Confidential Information solely for legitimate business purposes while affiliated with the Company and in direct furtherance of their duties. Confidential Information may not be copied, retained, disclosed, or used for personal gain or for the benefit of any other brokerage, competitor, or third party without the Company's prior written consent.

Post-Termination Restrictions. Upon termination, the Associate must: (a) Immediately cease use of Company-Generated Client data, lead sources, and proprietary systems; (b) Return all Company property and documents within five (5) calendar days; (c) Certify in writing that all Company materials in electronic form have been deleted from personal devices, cloud storage, and email accounts, with the exception of legally required records retention; and (d) Continue to maintain confidentiality of trade secrets, pricing structures, business strategies, and non-public Company information.

Enforcement Rights. Unauthorized use or disclosure of Confidential Information constitutes a material breach and entitles the Company to immediate injunctive relief, recovery of damages, including reasonable attorneys' fees and costs, and any other remedies available under law or equity.

Survival. Confidentiality obligations survive termination indefinitely as to trade secrets, client data, proprietary business information, and any information protected under applicable state or federal law.

6. ERRORS & OMISSIONS (E&O) INSURANCE

The Broker maintains an E&O policy covering professional services. The Associate is included at no upfront cost but agrees to pay any deductible attributable to their conduct, as further defined in the current carrier policy declarations and the E&O Addendum. The Company shall offer the Associate a written payment plan option for deductibles exceeding the threshold specified in the E&O Addendum.

Associates must report potential claims immediately (meaning within twenty-four (24) hours of receipt or discovery), including demand letters, threats of claims, or service of process.

7. COMPENSATION

Commission Basis. The Associate shall be compensated solely through commissions in accordance with the Commission Structure Addendum ("CSA"), as amended from time to time. The CSA is expressly incorporated into this Agreement by reference and shall govern commission calculation, application order, offsets, and disbursement mechanics, while Exhibit A – Commission Fee Schedule governs commission plans, splits, fees, pricing, thresholds, and billing schedules.

Conditions Precedent to Payment. Commissions are not earned and shall not be disbursed until all of the following have been satisfied: The transaction file is complete and compliant; the Broker has provided written approval; the Company has received cleared funds; and the Associate is in Good Standing.

Commission Timing. Commissions are disbursed within five (5) business days after all conditions are satisfied. The five (5) business day clock begins only after all four conditions are simultaneously satisfied.

Abandoned Commissions. Associate must submit the completed compliance file and all commission disbursement documents within forty-eight (48) calendar hours after the closing date shown on the settlement statement.

Post-Termination Commissions. Commissions are payable only on transactions supported by a fully executed purchase-and-sale agreement dated before termination or inactivation, and remain subject to file completion, Broker approval, cleared funds, and offsets.

Post-Termination Compensation Floor. For transactions with fully executed purchase-and-sale agreements dated before termination where the Associate substantially performed their duties prior to termination, the Company shall disburse not less than fifty percent (50%) of the net commission otherwise due (after transaction fees and direct transaction-related offsets only) within thirty (30) days of closing, provided that: (i) the Associate submits available transaction documents within ten (10) business days of the Company's written request; (ii) the Associate cooperates reasonably with file completion; and (iii) no fraud, conversion, or Material Breach directly related to that transaction has occurred.

Good Standing. Good Standing means the Associate satisfies all of the following: (a) maintains a current, active Florida real estate license in good standing with DBPR; (b) has no outstanding fees, balances, or debts owed to the Company; (c) has no material policy violations or unresolved compliance issues; (d) maintains current proof of E&O insurance and auto insurance with the Company listed as additional insured when transporting clients; (e) complies with all document submission deadlines and file completion requirements; and (f) is not subject to any active suspension, investigation, or disciplinary action.

Personal Transactions. Personal transactions involving the Associate or a related party are permitted only with prior Broker approval and are subject to the applicable transaction fees and compliance requirements set forth in Exhibit A – Commission Fee Schedule.

Fees. All Company fees, pricing, commission schedules, transaction fees, compliance fees, administrative charges, and billing timing are governed exclusively by Exhibit A – Commission Fee Schedule.

Overpayments & Deductions. Any overpayment must be repaid within five (5) business days of notice. The Associate authorizes the Company to deduct unpaid balances, overpayments, fees, fines, or obligations from any commission disbursement, provided that: (i) offsets shall not exceed fifty percent (50%) of any single commission disbursement without the Associate's prior written consent, except where the underlying obligation relates to that specific transaction; (ii) the Company shall provide written notice of any offset at least three (3) business days before disbursement; and (iii) for offsets exceeding fifty percent (50%), the Company shall offer a written payment plan option of not less than ninety (90) days.

8. TRANSACTION COMPLIANCE

The Associate must comply with all requirements set forth in the Operations & Compliance Manual and Transaction File Requirements Addendum. All documents must be submitted in the compliance platform by the deadlines specified. Failure to comply may result in withheld or forfeited commissions, suspension, or termination. The Associate acknowledges that compliance is a condition precedent to payment.

9. CLIENT OWNERSHIP

Personally Generated Clients. Clients personally generated by the Associate through their independent marketing, prospecting, referrals, and sphere of influence efforts are deemed "Personally Generated Clients" and remain the Associate's property, subject at all times to this Agreement, the Commission Structure Addendum, and Company policies. To qualify as a Personally Generated Client, the Associate must have had a bona fide personal or professional relationship with the client that predated the Associate's affiliation with the Company, and that relationship must have been disclosed to and documented with the Broker in writing at the time of affiliation or within ten (10) business days.

Company-Generated Leads. Company-Generated Leads are defined in Exhibit A. The Broker determines lead classification based on source documentation, timestamp of first contact, and inquiry method.

Lead Classification Appeal Process. If an Associate disputes a lead classification determination, they may submit a written appeal to the Broker within seven (7) calendar days, including all supporting documentation. The Broker shall issue a written response within ten (10) business days of receiving the appeal. The Broker's written determination after review of the appeal shall be final and binding for internal administrative purposes.

10. REFERRAL & CO-AGENT COMMISSION DISPUTES

The Company is not responsible for resolving referral or co-agent disputes unless: (i) the agreement is in writing, (ii) signed by all parties, and (iii) approved by the Broker. Disputes must be resolved pursuant to MLS and NAR arbitration rules. The Company reserves the right to withhold disputed commissions until resolution.

11. INDEMNIFICATION

For indemnification, defense, and offsets, see the Indemnification, Defense, and Offsets Addendum, which is incorporated by reference and controls this topic. Broker may exercise withholding and offsets consistent with that Addendum and the Operations & Compliance Manual.

12. TERM & TERMINATION

Term. This Agreement is effective for one (1) year and shall automatically renew annually unless terminated in accordance with this Section.

Termination At-Will. Either party may terminate this Agreement at any time, with or without cause, upon written notice. Termination shall be effective immediately upon delivery of such notice. Termination shall not affect the Broker's right to collect any earned but unpaid fees, commissions, transaction charges, or other amounts due under this Agreement. All provisions relating to compensation, file retention, compliance, confidentiality, recordkeeping, and any obligations that by their nature are intended to survive termination shall survive termination of this Agreement.

13. POST-TERMINATION OBLIGATIONS

Upon termination of this Agreement, the Associate must: Return all Company property, signage, and records within five (5) calendar days; Cease all use of Company logos, branding, templates, and platforms; Complete all outstanding compliance file requirements; Reconcile commissions in accordance with the CSA; Update all online profiles within five (5) calendar days to remove Company affiliation.

Client Ownership After Termination. The Associate may continue working only with clients they personally generated, provided they remain in compliance with this Agreement, the CSA, and post-termination obligations. The Associate has no rights to Company-generated leads, referrals, relocation clients, or advertising-sourced prospects after termination. Any attempt to divert or solicit Company-generated leads post-termination constitutes a material breach.

Survival. All confidentiality, indemnification, non-solicitation, payment, and post-termination commission obligations expressly set forth in this Agreement and the CSA shall survive termination and remain enforceable.

14. NON-SOLICITATION

During affiliation and for twelve (12) months after termination, the Associate shall not directly or indirectly solicit or recruit AARI Realty Associates, staff, or contractors to leave the Company. For purposes of this section, "solicitation" means any direct, targeted outreach to a specific individual for the purpose of inducing them to terminate or reduce their affiliation with the Company. General public advertising that is not targeted at specific Company Associates does not constitute solicitation.

15. DISPUTE RESOLUTION

Written Notice Required First. For any dispute arising under this Agreement or any Incorporated Document, the Associate must first submit a written dispute notice to the Broker within ten (10) business days of the date the Associate knew or reasonably should have known of the disputed determination. Failure to submit a timely written dispute notice constitutes a waiver of the dispute and forfeiture of any related claim.

Broker Review. Upon receipt of a written dispute notice, the Broker shall review the matter and provide a written response within ten (10) business days. The Broker's determination is final for internal administrative purposes.

Mediation First. The parties shall first attempt good-faith mediation in Lee County, Florida before a neutral mediator mutually selected within ten (10) business days of the Broker's written response. Each party shall bear their own costs. The cost of the mediator shall be split equally.

Arbitration. If mediation does not resolve the dispute within thirty (30) days of the mediator's appointment, the dispute shall be submitted to binding arbitration before a single arbitrator in Lee County, Florida, under the rules of the American Arbitration Association. The arbitrator's decision shall be final and binding and may be entered as a judgment in any court of competent jurisdiction.

Attorneys' Fees. Each party shall bear their own attorneys' fees and costs unless the arbitrator or mediator determines that a party acted in bad faith or brought a frivolous claim.

No Class Actions. All disputes shall be resolved on an individual basis. The Associate waives any right to participate in a class action, collective action, or representative proceeding.

Continued Performance. During the pendency of any dispute, the Associate shall continue to perform all obligations under this Agreement and all Incorporated Documents.

Jury Trial Waiver. Both parties knowingly and voluntarily waive any right to a jury trial for any claim arising out of or relating to this Agreement or the Incorporated Documents, to the fullest extent permitted by law.

16. GOVERNING LAW

This Agreement shall be governed by and construed under the laws of the State of Florida, without regard to conflicts of law principles.

17. FORCE MAJEURE

Neither party shall be liable for failure to perform obligations under this Agreement when such failure is caused by events beyond their reasonable control, including but not limited to acts of God, natural disasters, hurricanes, war, terrorism, pandemic, epidemic, government orders, utility failures, or cyberattacks. During a force majeure event, affected deadlines shall be extended by the duration of the event plus a reasonable cure period not to exceed ten (10) calendar days. The party affected by a force majeure event shall provide written notice to the other party within forty-eight (48) calendar hours of the event.

18. ENTIRE AGREEMENT; NOTICE; ORDER OF PRECEDENCE; NO ASSIGNMENT

Entire Agreement. This ICA, together with all Incorporated Documents (CSA, Operations & Compliance Manual, Transaction File Requirements Addendum, E&O Addendum, Fair Housing Policy, Advertising Policy, Referral Bonus Policy, and Exhibit A — Commission Fee Schedule), constitutes the entire agreement between the parties. Informational summaries, fee overviews, or marketing materials are non-binding and do not modify this Agreement, the CSA, or Exhibit A.

Modification and Notice. The Company may amend this Agreement and all Incorporated Documents at any time, effective immediately upon delivery of notice. Continued affiliation after notice constitutes acceptance of all updated terms. No mutual signature is required for amendments to Incorporated Documents, policies, fee schedules, or addenda. The sole exception is that no amendment to commission rates, splits, transaction fees, or fee schedules shall alter the economic terms of any transaction supported by a fully executed purchase-and-sale agreement or listing agreement dated prior to the delivery of such notice.

Order of Precedence (Compensation Matters). In the event of a conflict regarding compensation: (i) this Independent Contractor Agreement governs the legal relationship of the Parties; (ii) the Commission Structure Addendum governs commission calculation, application order, offsets, and disbursement mechanics; and (iii) Exhibit A – Commission Fee Schedule governs commission plans, splits, fees, pricing, thresholds, and schedules.

No Assignment. Neither party may assign this Agreement or any rights hereunder without the prior written consent of the other party, except that the Company may assign this Agreement in connection with a merger, sale of assets, or change of control.

19. SEVERABILITY; NO WAIVER

Severability. If any provision of this Agreement is held invalid, illegal, or unenforceable by a court of competent jurisdiction, such determination shall not affect the validity or enforceability of any other provision. The invalid or unenforceable provision shall be modified to the minimum extent necessary to make it enforceable while preserving the parties' original intent.

No Waiver. The failure of either party to enforce any provision of this Agreement, or to exercise any right or remedy available under this Agreement, shall not constitute a waiver of that provision, right, or remedy. No waiver shall be effective unless made in writing and signed by the party granting the waiver.

20. CONSOLIDATED ACKNOWLEDGMENT; INCORPORATION BY REFERENCE; ELECTRONIC SIGNATURES

By executing this ICA, the Associate acknowledges and agrees to all Incorporated Documents listed above, as they exist on the Effective Date. No separate signatures are required on any Incorporated Document.

Effective Date Definition. "Effective Date" means the date on which both parties have executed this Agreement. For Incorporated Documents, the effective date of updates shall be as specified in the notice of amendment, effective immediately upon delivery.

Electronic Signatures. Electronic signatures shall have the same force and effect as original signatures. The parties consent to conduct this transaction electronically and agree that electronic records shall satisfy any requirement for writings under Florida law, including Florida's Uniform Electronic Transactions Act (Chapter 668, Florida Statutes).

Commission Structure Addendum

Core agreement · Aari Realty LLC

Last Revised: April 22, 2026

This Commission Structure Addendum ("Addendum") is incorporated into and made part of the AARI Realty LLC Independent Contractor Agreement ("ICA") between AARI Realty LLC ("Company") and the affiliated independent contractor ("Associate").

This Addendum governs the calculation, application, timing, and disbursement of commissions, and shall be read together with the ICA and Exhibit A – Commission Fee Schedule ("Exhibit A"). All capitalized terms not defined herein shall have the meanings assigned in the ICA or Exhibit A.

1. PURPOSE AND SCOPE

1.1 Purpose

The purpose of this Addendum is to establish the mechanics by which commissions are processed, applied, adjusted, and disbursed, including the Company's authority with respect to compliance review, fee offsets, and payment timing.

1.2 Scope

This Addendum governs the mechanics of commission calculation, application order, and disbursement. Fee amounts, plan pricing, and billing schedules are governed exclusively by Exhibit A, as amended from time to time.

Notwithstanding the foregoing, Sections 14, 15, and 16 of this Addendum establish fixed commission split structures applicable to Company Assisted Transactions, Referral-Sourced Transactions, and Third-Party Referral Network Transactions respectively. These splits are operative provisions of this Addendum and are not governed by Exhibit A. Specific fee amounts applicable to those transaction types are set forth in Exhibit A and incorporated herein by reference.

2. DOCUMENT HIERARCHY AND INTERPRETATION

2.1 Harmonious Interpretation

The ICA, this Addendum, and Exhibit A are intended to be interpreted harmoniously.

2.2 Conflict Resolution

In the event of any conflict that cannot be reconciled:

1. The ICA shall govern the legal relationship between the parties.

2. This Commission Structure Addendum shall govern commission calculation, application order, and disbursement mechanics.
3. Exhibit A shall govern commission plans, splits, fees, pricing, thresholds, and schedules.

2.3 Modification Restrictions

No oral statements or prior writings shall modify this hierarchy.

3. COMMISSION EARNED VS. COMMISSION PAYABLE

3.1 Commission Earned

No commission is considered earned by the Associate unless and until all of the following conditions are satisfied:

1. The transaction has closed.
2. All funds have been received by the Company and fully cleared.
3. All required documentation has been submitted, reviewed, and approved.
4. All compliance, supervisory, and regulatory requirements have been met.
5. The Broker has authorized release of funds.

Compensation is earned only upon successful closing and receipt of funds by the Brokerage. Preparation of offers, contracts, or other transaction documents does not constitute earned compensation.

3.2 Commission Payable

A commission that is earned is not automatically payable. Payment is subject to:

1. Completion of all Company-required compliance review.
2. Satisfaction of all financial obligations owed by the Associate.
3. Application of all applicable offsets, deductions, and adjustments.

The Company may delay disbursement as reasonably necessary to complete compliance or resolve outstanding issues.

4. COMMISSION APPLICATION ORDER

All commissions shall be calculated and applied in the following order, unless otherwise required by law:

1. Broker-required compliance holds (if any).
2. Referral obligations (if any) — including referral fees owed to AARI Referrals LLC under Section 15 or to third-party referral networks under Section 16, calculated on gross commission before any other deductions.
3. Company transaction fees and charges as set forth in Exhibit A — deducted from the Company's remaining portion only for Referral-Sourced Transactions under Section 15.

4. Offsets for outstanding balances owed by the Associate.
5. Net commission payable to Associate per applicable commission plan or fixed split.

The Company's accounting determination shall be final absent manifest error. For Referral-Sourced Transactions under Section 15, the commission application order set forth in Section 15.2 controls and supersedes the general order above to the extent of any conflict.

5. OFFSETS, DEDUCTIONS, AND WITHHOLDINGS

The Company is expressly authorized to offset, deduct, or withhold amounts from commissions payable to the Associate for:

1. Transaction fees, compliance fees, and administrative charges.
2. Unpaid invoices or balances.
3. Referral fees owed.
4. Returned payments or chargebacks.
5. Regulatory fines or penalties attributable to the Associate.
6. Any other amounts owed under the ICA, this Addendum, or Exhibit A.

This right of offset survives termination of the ICA.

6. COMMISSION PLAN APPLICATION

6.1 Plan Determination

The commission plan applicable to any transaction shall be determined based on:

1. The Associate's approved plan in effect at the time the transaction contract is executed, not at closing.
2. Compliance with all eligibility requirements set forth in Exhibit A.

6.2 Prospective Application

Plan changes apply prospectively only and do not affect transactions already under contract.

7. REFERRALS AND COOPERATING COMPENSATION

All referral compensation is subject to:

1. Written referral agreements.
2. Receipt and clearance of referral funds.
3. Compliance with applicable laws and brokerage policies.

Administrative fees and referral splits are governed by Exhibit A and any applicable referral entity agreements.

8. PERSONAL TRANSACTIONS

8.1 Definition and Title Requirement

A Personal Transaction qualifies only when the Associate's name, the Associate's spouse's name, or a business entity controlled by the Associate or the Associate's spouse appears on title as a principal to the transaction.

Transactions in which the Associate or qualifying party is not reflected on title do not qualify as Personal Transactions and shall be subject to the standard commission structure applicable to the Associate's Commission Plan.

Qualification is determined based on the Associate's or qualifying party's status at the time of contract execution and continuously maintained through closing. Adding the Associate's name to title after contract execution shall not retroactively qualify the transaction.

For purposes of this section, "control" means: (a) direct or indirect ownership of fifty percent (50%) or more of the voting or economic interests in an entity; (b) contractual authority to bind the entity or direct its management; (c) beneficial interest in a trust or entity where the Associate or qualifying party is a beneficiary or has the power to direct distributions; (d) membership in an LLC where the Associate has management authority regardless of ownership percentage; or (e) any other arrangement where the Associate or qualifying party can materially influence or benefit from the transaction beyond ordinary arm's-length participation. The Company reserves the right to determine control based on economic substance rather than legal form.

8.2 Commission Treatment

Personal Transactions receive no special commission treatment. The standard brokerage transaction fee set forth in Exhibit A and the Associate's standard commission split under the Associate's Commission Plan both apply — the same as any other transaction — subject to all other applicable program rules and brokerage policies.

8.3 Application to All Plans

The Personal Transaction provisions in this Section 8 apply uniformly to Associates on all commission plans. Personal Transactions receive no special treatment and are handled the same as any other transaction under the Associate's Commission Plan. The Company retains sole discretion to determine whether a transaction qualifies as a Personal Transaction based on economic substance.

8.4 Compliance and Verification

All compliance requirements, file submission obligations, and Company policies remain applicable to Personal Transactions.

The Company may require documentation reasonably necessary to verify title ownership or control and reserves the right to determine whether a transaction qualifies as a Personal Transaction in its sole and absolute discretion, which determination shall be final.

9. LICENSE STATUS AND COMMISSION RIGHTS

The Associate must hold an active license in good standing at all times during:

1. Transaction negotiation.
2. Contract execution.
3. Closing.
4. Commission disbursement.

If the Associate's license is inactive, suspended, terminated, or disassociated prior to commission disbursement, payment shall be handled in accordance with the ICA and applicable law.

10. NO EMPLOYMENT RELATIONSHIP

Nothing in this Addendum shall be construed to create an employer-employee relationship. The Associate remains an independent contractor and is solely responsible for all taxes, withholdings, and statutory obligations.

11. SURVIVAL

All provisions relating to commission calculation, offsets, payment obligations, enforcement, and dispute resolution shall survive termination of the ICA.

12. AMENDMENTS AND NOTICE

This Addendum may be amended by the Company effective immediately upon notice to the Associate by any method set forth in the ICA Definitions section. Amendments apply to all transactions not yet under a fully executed purchase-and-sale agreement or listing agreement as of the date of notice.

13. ENTIRE AGREEMENT REGARDING COMMISSION STRUCTURE

This Addendum, together with the ICA and Exhibit A, constitutes the entire agreement between the parties with respect to commission structure, application, and disbursement, and supersedes all prior discussions or understandings on such matters.

14. INTERNAL DEAL HANDLING & COMPENSATION

14.1 Definition of Company Assisted Transaction

A Company Assisted Transaction is any transaction in which the Broker assigns, reassigns, or redirects a client, listing, or pending transaction from one Associate to another for the purpose of protecting the client relationship, ensuring performance, or preserving the transaction.

Upon reassignment, the transaction is deemed a brokerage controlled transaction and is no longer considered the original Associate's independent deal.

14.2 Trigger Events for Reassignment

The Broker may initiate reassignment at their sole discretion, including but not limited to the following circumstances:

- Failure to respond to client communication within forty-eight (48) hours of documented contact attempt
- Failure to execute requested pricing, marketing, or contractual updates within the timeframe specified by the Broker in writing
- Listing expiration risk due to inaction or delay
- Incomplete or non-compliant file management
- Inability to perform due to schedule, capacity, or external employment
- Client complaint or expressed dissatisfaction
- Broker determination that reassignment is necessary to protect the transaction or the brokerage

The Broker's determination is final and does not require Associate consent.

14.3 Compensation Structure Upon Reassignment

In the event of reassignment, the gross commission shall be distributed as follows:

1. The applicable flat transaction fee as set forth in Exhibit A, Section 2.4, is deducted from the gross commission first.
2. The remaining commission after the transaction fee is split fifty percent (50%) to AARI Realty LLC and fifty percent (50%) to the assigned Associate.

This allocation is fixed and applies regardless of the assigned Associate's standard commission plan. The assigned Associate's standard commission plan — including but not limited to Mentorship Path, Aari Growth, or Aari Max — does not apply to reassigned transactions.

The assigned Associate is considered the servicing agent and assumes full responsibility for execution, communication, and completion of the transaction.

14.4 Original Associate Compensation Discretionary

The original Associate is not entitled to compensation upon reassignment.

Any compensation to the original Associate:

- Is solely at the discretion of the Broker
- Must be approved and documented in writing prior to closing
- Shall be paid from the brokerage portion of the commission only
- Shall not reduce or impact the assigned Associate's compensation

No ranges, percentages, or guidance figures are established or implied by this Addendum. Any determination is made solely by the Broker at the time of closing and does not create entitlement, precedent, or expectation.

14.5 Referral vs Reassignment Clarification

- A Referral is defined as a voluntary transfer initiated by the Associate prior to performance failure or broker intervention
- A Reassignment is defined as a broker initiated transfer due to performance concerns, risk, or operational necessity
- Referrals are subject to separate referral agreements and are not governed by this section
- Reassignments are governed exclusively by this section and are not treated as referrals under any circumstance

14.6 Authority and Final Determination

The Broker retains full authority over:

- Classification of the transaction as referral or reassignment
- Assignment of servicing Associate
- Compensation structure within the parameters outlined herein

All determinations made by the Broker are final and binding.

15. REFERRAL-SOURCED TRANSACTIONS (AARI REFERRALS LLC LEADS)

15.1 Definition of Referral-Sourced Transaction

A Referral-Sourced Transaction is any transaction in which:

1. A lead or client is submitted to AARI Realty LLC by AARI Referrals LLC pursuant to a written referral agreement between the two entities; and
2. The Broker assigns the transaction to an AARI Realty LLC Associate for execution and completion.

A Referral-Sourced Transaction is distinct from a Company Assisted Transaction as defined in Section 14. These are separate transaction types governed by separate rules. A Referral-Sourced Transaction is not a reassignment and shall not be treated as one under any circumstance.

15.2 Commission Flow and Application Order

For all Referral-Sourced Transactions, the gross commission received by AARI Realty LLC shall be distributed in the following fixed order. This order is non-negotiable and may not be altered by the Associate or the Broker absent a written amendment to this Addendum:

1. **Referral Fee** — 25% of the gross commission is paid to AARI Referrals LLC pursuant to the written referral agreement between the entities. This referral fee is calculated on the gross commission before any deductions.
2. **Transaction Fee** — The applicable flat transaction fee as set forth in Exhibit A, Section 2.4, is deducted from the remaining commission retained by AARI Realty LLC. This fee is deducted from the Company's portion only and does not reduce the referral fee or the assigned Associate's compensation.
3. **50/50 Split** — The remaining commission after the referral fee and transaction fee are deducted is split equally between AARI Realty LLC (50%) and the assigned Associate (50%). This split is fixed and applies regardless of the assigned Associate's standard commission plan. The assigned Associate's standard commission plan — including but not limited to Mentorship Path, Aari Growth, or Aari Max — does not apply to Referral-Sourced Transactions.

15.3 Transaction Fee Amounts

The flat transaction fees applicable to Referral-Sourced Transactions are set forth in Exhibit A, Section 2.4, and are incorporated herein by reference. These fees replace the standard plan-based transaction fees set forth in Exhibit A, Section 2.1 for Referral-Sourced Transactions. The plan-based transaction fees in Section 2.1 do not apply to Referral-Sourced Transactions.

15.4 Assigned Associate Obligations

The assigned Associate:

1. Assumes full responsibility for execution, communication, client service, and completion of the transaction from the date of assignment.
2. Is not entitled to any portion of the referral fee paid to AARI Referrals LLC.
3. Is not entitled to compensation under their standard commission plan for Referral-Sourced Transactions.
4. Must comply with all file management, documentation, and compliance requirements applicable to standard transactions.

15.5 No Entitlement of Referring Associate to Transaction Commission

The AARI Referrals LLC associate who submitted the referral has no claim to, and no right to receive, any portion of the transaction commission distributed under this Section. The referring associate's compensation is governed exclusively by the AARI Referrals LLC Referral Associate Agreement, Commission Structure Addendum, and Exhibit A — Fee Schedule.

15.6 Written Referral Agreement Required

No Referral-Sourced Transaction shall be processed or compensated under this Section unless a written referral agreement, fully executed by all required parties, is on file prior to closing. Absent a written referral agreement, the transaction shall be treated as a standard transaction under the assigned Associate's commission plan.

15.7 Authority and Final Determination

The Broker retains full authority over:

1. Classification of a transaction as a Referral-Sourced Transaction under this Section.
2. Assignment of the servicing Associate.
3. Verification that all documentation requirements have been satisfied prior to disbursement.

All determinations made by the Broker are final and binding.

16. THIRD-PARTY REFERRAL NETWORK TRANSACTIONS

16.1 Definition

A Third-Party Referral Network Transaction is any transaction in which a lead or client is sourced through an external referral network or platform (including but not limited to Opcity, ReadyConnect Concierge, or any substantially similar service) and assigned to an AARI Realty LLC Associate by the Broker.

Third-Party Referral Network Transactions are distinct from Referral-Sourced Transactions under Section 15 and from Company Assisted Transactions under Section 14. Each transaction type is governed by its own separate rules. Classification is determined solely by the Broker and is final and binding.

16.2 Acknowledgment of Third-Party Terms

Prior to receiving any lead from a third-party referral network, the Associate must complete a written acknowledgment confirming that they have reviewed the network's current terms of service, referral fee schedule, and performance requirements. This acknowledgment must be signed and submitted to the Broker before the Associate's first lead acceptance and must be renewed annually or upon material change to the network's terms, whichever occurs first.

By accepting a lead from a third-party referral network, the Associate expressly acknowledges and agrees that:

1. The transaction is subject to the third-party network's own agreement, terms of service, referral fee schedule, performance standards, and rules, as amended by the network from time to time.
2. The Associate has reviewed, understands, and agrees to be bound by the third-party network's current terms as a condition of receiving and accepting the lead.
3. AARI Realty LLC does not control, modify, or guarantee the terms of any third-party referral network agreement. The network's terms govern independently of this Addendum.

4. Changes to third-party network terms, fee schedules, or referral percentages take effect as determined by the network and are outside the control of AARI Realty LLC. The Associate is responsible for staying current on all applicable third-party network requirements.

16.3 Referral Fee Structure

The referral fee applicable to a Third-Party Referral Network Transaction is determined exclusively by the third-party network's current fee schedule at the time the lead is accepted. AARI Realty LLC makes no representations or guarantees regarding:

1. The referral fee percentage or amount.
2. The consistency or continuity of the network's fee schedule.
3. Lead quality, lead volume, or availability of leads through any network.

The Associate is solely responsible for reviewing the network's current referral fee schedule prior to accepting any lead. Acceptance of a lead constitutes the Associate's agreement to the referral fee in effect at that time.

16.4 Commission Flow

After the third-party referral fee is paid in accordance with the network's requirements, the remaining commission is distributed to the Associate under their standard commission plan as set forth in Exhibit A, including the applicable plan-based transaction fee under Exhibit A Section 2.1.

The fixed 50/50 split applicable to Company Assisted Transactions (Section 14) and Referral-Sourced Transactions (Section 15) does not apply to Third-Party Referral Network Transactions unless separately triggered by a reassignment event under Section 14.

16.5 Associate Compliance Obligations

The Associate agrees to:

1. Comply with all rules, regulations, response time requirements, performance standards, and client communication obligations imposed by the third-party referral network.
2. Maintain active status and good standing with the network at all times during the transaction.
3. Notify the Broker immediately upon receipt of any notice of non-compliance, suspension, or removal from the network.
4. Conduct all client interactions in a manner consistent with both the network's standards and AARI Realty LLC's Operations and Compliance Manual.

Failure to comply with third-party network requirements is grounds for disciplinary action under AARI Realty LLC's compliance policies and may result in removal from network lead eligibility at the Broker's sole discretion.

16.6 No Brokerage Liability

AARI Realty LLC is not responsible or liable for:

1. Changes to third-party referral fee structures, terms, or performance requirements.
2. Loss of lead access, network suspension, or removal of the Associate from any third-party platform.
3. Lead quality, conversion rates, or transaction outcomes sourced through third-party networks.
4. Any dispute between the Associate and the third-party network.

All disputes with third-party referral networks are the sole responsibility of the Associate.

16.7 Authority and Final Determination

The Broker retains full authority over:

1. Classification of a transaction as a Third-Party Referral Network Transaction under this Section.
2. Eligibility of Associates to receive third-party referral leads.
3. Removal of an Associate from third-party lead eligibility based on performance, compliance history, or network requirements.

All determinations made by the Broker are final and binding.

17. DISPUTE RESOLUTION

17.1 Internal Resolution First

In the event of any dispute arising out of or relating to commission calculations, fee deductions, split allocations, or any other compensation matter governed by this Addendum, the Associate must first submit a written dispute notice to the Broker within ten (10) business days of the date the Associate knew or reasonably should have known of the disputed calculation or determination. Failure to submit a timely written dispute notice constitutes waiver of the dispute.

17.2 Broker Review

Upon receipt of a written dispute notice, the Broker shall review the matter and provide a written response within ten (10) business days. The Broker's written response shall include the basis for the determination and any supporting documentation.

17.3 Mediation

If the dispute is not resolved through the Broker's written response, either party may request non-binding mediation within thirty (30) days of the Broker's written response. Mediation shall be conducted by a mutually agreed-upon mediator in Lee County, Florida. Each party shall bear their own costs of mediation. The cost of the mediator shall be split equally between the parties.

17.4 Arbitration

If mediation does not resolve the dispute, the dispute shall be submitted to binding arbitration in Lee County, Florida, in accordance with the rules of the American Arbitration Association then in effect. The arbitrator's decision shall be final and binding and may be entered as a judgment in any court of competent jurisdiction. Each party shall bear their own attorneys' fees and costs unless the arbitrator determines that a party acted in bad faith, in which case the arbitrator may award fees and costs against the offending party.

17.5 No Class Actions

All disputes shall be resolved on an individual basis. The Associate waives any right to participate in a class action, collective action, or representative proceeding of any kind with respect to any dispute arising under this Addendum.

17.6 Continued Performance

During the pendency of any dispute, the Associate shall continue to perform all obligations under the ICA, this Addendum, and Exhibit A. The existence of a dispute does not entitle the Associate to withhold performance or refuse assignment of transactions.

Exhibit A — Compensation & Fees

Core agreement · Aari Realty LLC

Status: Current · **Controls:** Commission amounts, fees, and payment timing · **Last Updated:** April 2026 · **Questions:** Contact Broker or Ops & Compliance

This Commission Fee Schedule ("Exhibit A") is incorporated into and made part of the Aari Realty LLC Independent Contractor Agreement ("ICA") and the Commission Structure Addendum ("CSA") entered into between Aari Realty LLC ("Company") and the affiliated independent contractor ("Associate").

This Exhibit A sets forth the commission plans, transaction fees, administrative charges, compliance fees, referral compensation, and incentive programs applicable to the Associate. Exhibit A is incorporated by reference into the CSA, and together with the ICA and CSA, governs all compensation, fee, and commission matters between the parties.

In the event of any inconsistency between this Exhibit A and the ICA or CSA, the documents shall be interpreted harmoniously to the greatest extent possible. Where reconciliation is not possible, the CSA shall control as to commission structure and application order, and this Exhibit A shall control as to specific fee amounts, plan pricing, and schedules, unless expressly stated otherwise in the ICA.

This Exhibit A may be amended by the Company effective immediately upon notice to the Associate by any method set forth in the ICA Definitions section. Any amendment applies to all transactions not yet under a fully executed listing or purchase-and-sale agreement as of the date of notice.

1. Commission Plans and Eligibility

1.1 Available Commission Plans

PLAN	SPLIT (ASSOCIATE / COMPANY)	MONTHLY BROKERAGE FEE
Mentorship Path	75% / 25%	$59.00 / month
Aari Growth	85% / 15%	$79.00 / month
Aari Max	100% / 0%	$99.00 / month

All commission plans are subject to the ICA, the CSA, this Exhibit A, and Aari Realty's Operations and Compliance Manual, as amended from time to time.

Associate's Selected Commission Plan

I, the undersigned Associate, acknowledge that I have reviewed the available commission plans and select the following plan as my initial commission plan:

▢ **Mentorship Path** (75% Associate / 25% Company · $59.00/mo) Initials: _ ▢ ***Aari Growth (85% Associate / 15% Company · $79.00/mo) Initials:*** _ ▢ **Aari Max** (100% Associate · $99.00/mo) Initials: ____

1.2 Commission Plan Selection

Associates select their commission plan at onboarding. All three plans (Mentorship Path, Aari Growth, and Aari Max) are available at the time of joining, subject to Broker review and approval based on the Associate's experience, supervision needs, compliance history, and regulatory risk profile.

1.3 Commission Plan Changes

Eligibility. An Associate may request a commission plan change only after completing a minimum of five (5) closed residential sales transactions — excluding rentals and vacant land — with fully compliant files under Broker supervision at Aari Realty LLC. Until this minimum is met, the Associate remains on their onboarding plan regardless of time elapsed or prior experience at another brokerage.

Request Process. Once eligible, the Associate submits a written plan change request to the Broker. The Broker will approve or deny the request in writing within five (5) business days. Approval is at the Broker's sole discretion based on file compliance history, transaction quality, and overall performance. The Broker may deny a request without cause.

Effective Date. An approved plan change takes effect on the first day of the calendar month following the date of the Broker's written approval.

Transaction Protection. The Associate's current plan applies to all transactions supported by a fully executed purchase-and-sale agreement or listing agreement dated on or before the Broker's written approval date. Those transactions close under the original plan regardless of when the new plan takes effect.

Frequency Limit. An Associate may not submit a new plan change request within sixty (60) days of their most recent plan change effective date.

Downgrade Rule. The same eligibility requirements, request process, effective date, and frequency limit apply to plan changes in either direction — whether upgrading or downgrading. Moving from Aari Max back to Aari Growth or Mentorship Path requires the same process.

2. Transaction Types and Transaction Fee Application

2.1 Standard Transaction Fees

The following per-side transaction fees apply to all Associates regardless of commission plan:

TRANSACTION TYPE	TRANSACTION FEE (PER SIDE)	APPLIES TO
Residential Sale	$499.00	All plans
Vacant Land Sale	$299.00	All plans

2.2 Commercial and Rental Transaction Fees

TRANSACTION TYPE	TRANSACTION FEE (PER SIDE)
Commercial Sale or Commercial Lease	$399.00
Residential Rental	$299.00

2.3 Transaction Fee Application

Transaction and compliance fees are assessed per side for any transaction facilitated or processed under the Company's brokerage license, consistent with the CSA's commission application order.

If the Associate represents both sides of a transaction where legally permitted, the applicable transaction fee applies to each side.

If a transaction fee is not collected at closing, the Company may deduct the fee from commissions or invoice the Associate directly.

2.4 Referral-Sourced Transaction Fees (AARI Referrals LLC Leads)

The following flat transaction fees apply exclusively to Referral-Sourced Transactions as defined in CSA Section 15. These fees are separate from and replace the plan-based transaction fees in Section 2.1 for Referral-Sourced Transactions. The assigned Associate's standard commission plan transaction fee does not apply.

TRANSACTION TYPE	FLAT TRANSACTION FEE	DEDUCTED FROM
Residential Sale	$499.00	AARI Realty LLC portion only, after referral fee, before 50/50 split
Vacant Land Sale	$299.00	AARI Realty LLC portion only, after referral fee, before 50/50 split

The transaction fee is deducted from the remaining commission retained by AARI Realty LLC after the referral fee is paid to AARI Referrals LLC. The transaction fee does not reduce the referring associate's compensation or the assigned Associate's 50% share.

SAMPLE — Referral-Sourced Transaction (Residential)

Sale Price: $350,000 · Listing Commission: 3%

Step 1 — Gross Commission received by AARI Realty LLC: **$10,500.00** Step 2 — Referral Fee (25% of Gross Commission) paid to AARI Referrals LLC: **$2,625.00** Step 3 — Remaining commission retained by AARI Realty LLC: **$7,875.00** Step 4 — Flat Transaction Fee (Residential) deducted from AARI Realty LLC portion: **$499.00** Step 5 — Remaining after transaction fee: **$7,376.00** Step 6 — Fixed 50/50 Split — AARI Realty LLC: **$3,688.00** · Assigned Agent: **$3,688.00**

Illustrative only. Reflects fixed 50/50 split that overrides the assigned agent's standard commission plan per CSA Section 15.2. Does not create entitlement or guarantee payment.

3. Minimum Commission Requirements

These minimum commission requirements apply to: (a) all Associates operating under the Mentorship Path plan, and (b) all Referral-Sourced (company-provided lead) Transactions, regardless of the Associate's commission plan.

TRANSACTION TYPE	MINIMUM COMMISSION	RESPONSIBILITY FOR SHORTFALL
Residential & Vacant Land Sales	2.5% of sales price	Associate
Residential Rentals	One (1) full month's rent	Associate
Commercial Leases	2.5% of total lease value	Associate

Company-Provided Leads. On any Referral-Sourced (company-provided lead) Transaction, the Associate must charge the client no less than the minimum commission above and must apply the standard transaction fee. The Associate may not discount, reduce, or waive commission below this minimum on company-provided leads without prior written Broker approval. For Mentorship Path Associates, these minimums also operate as internal brokerage allocations.

4. Annual and Ongoing Compliance Fees

4.1 Monthly Brokerage Fee

PLAN	MONTHLY BROKERAGE FEE	BILLING SCHEDULE
Mentorship Path	$59.00 per month	Billed monthly
Aari Growth	$79.00 per month	Billed monthly
Aari Max	$99.00 per month	Billed monthly

The Monthly Brokerage Fee is set by the Associate's selected commission plan and is due on the first (1st) day of each month beginning in the Associate's onboarding month. The fee is non-refundable.

4.2 E&O + Compliance Fee

FEE	AMOUNT	BILLING SCHEDULE
E&O + Compliance Fee	$199.00 per year	Billed annually on anniversary; applies to all plans

The E&O + Compliance Fee is invoiced approximately two (2) months prior to the Associate's anniversary month and is due on the first (1st) day of the anniversary month, as further described in the CSA. The fee is non-refundable.

At onboarding, the first month's Monthly Brokerage Fee (per the Associate's selected plan) and the E&O + Compliance Fee ($199.00) are due together — for example, $59.00 + $199.00 = $258.00 for the Mentorship Path plan.

The E&O + Compliance Fee ($199.00/yr) applies to all Associates regardless of commission plan. The Monthly Brokerage Fee varies by plan as set forth in Section 4.1. Both fees are applied and enforced in accordance with the CSA.

5. Administrative and Conditional Fees

FEE TYPE	AMOUNT
Personal Transactions	$499.00 (residential) / $299.00 (land) — same as standard
Late Payment Fee	$25.00
Returned Payment Fee	$25.00
Reactivation Fee	$50.00

Grace Period: Five (5) calendar day grace period applies to all recurring fees (Monthly Brokerage Fee and E&O + Compliance Fee).

Late Payment Fee: $25 applies to any balance outstanding after the grace period.

Returned Payment Fee: $25 per occurrence for NSF, chargebacks, or rejected payments.

"Personal transaction" is defined in the CSA and ICA and includes transactions in which the Associate or a related party has a beneficial interest.

6. Referral Compensation and Incentives

6.1 Incoming Third-Party Referrals

- **Administrative Fee:** 10% of referral payment
- **Minimum Fee:** $100.00
- **Maximum Fee:** Not to exceed the total referral payment

Third-Party Referral Network Transactions (Opcity, ReadyConnect, or Similar Platforms)

Transactions sourced through third-party referral networks are governed by CSA Section 16 and are subject to the following:

- The referral fee is determined exclusively by the third-party network's current fee schedule. AARI Realty LLC does not set, control, or guarantee the referral fee percentage or amount.
- Referral fee percentages are subject to change at any time per the network's terms. Associates are responsible for reviewing the network's current fee schedule prior to accepting any lead.
- After the third-party referral fee is paid, the remaining commission is distributed under the Associate's standard commission plan including the applicable plan-based transaction fee per Section 2.1 of this Exhibit.
- The fixed 50/50 split applicable under Sections 2.4 and CSA Section 15 does not apply to third-party referral network transactions.
- By accepting a lead from a third-party referral network, the Associate agrees to be bound by that network's rules, regulations, performance standards, and fee schedule in effect at the time of lead acceptance.
- Full terms governing third-party referral network transactions are set forth in CSA Section 16, incorporated herein by reference.

6.2 Recruiting Incentive

Recruiting rewards are governed by the CSA. The current recruiting incentive is $100.00, payable upon satisfaction of all conditions set forth in the CSA.

7. Enforcement and Application

All fees, offsets, payment enforcement, license status consequences, survival obligations, and dispute resolution provisions applicable to compensation matters are governed by the ICA and CSA, and are incorporated herein by reference.